

the aforesaid six persons, in the aforesaid letters patent named as principal, and first named of the aforesaid commonalty and fellowship, should choose to them two other of the said commonalty, who from thenceforth should be called and named elects, and the aforesaid elects yearly should choose one of them to be president of the said commonalty: and as often as any of the rooms and places of the said elects should happen to be void by death, or otherwise, then the supervisors of the said elects, within thirty or forty days next after their deaths, or any of them, should choose, name, or admit one or more, as need should require, of the most learned and expert men of and in the aforesaid faculty in London, to supply the place and number of eight persons, so that he or they who should be chosen be first examined strictly by the said supervisors, according to the form devised by the said elects, and also by the said supervisors approved, as by the said Act amongst other things more fully appeareth. And the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William, farther say, that afterwards, and before the time when, &c. by another Act of Parliament of the Lady Mary, the [109 b] Queen of England, the 24th day of October, in the first year of her reign, at Westminster aforesaid, reciting, that whereas in the Parliament holden at London, the 5th day of April, in the 14th year of the reign of the Lord Henry the Eighth, late King of England, and from thence adjourned unto Westminster, the last day of June, in the 15th year of his reign, and there holden, it was enacted, that a certain grant by letter patents of incorporation, made and granted by the aforesaid late King, to the physicians of London, and all clauses and articles contained in the said grant, should be approved, granted, ratified, and confirmed by the said Parliament; in consideration whereof, it was enacted by the authority of the same Parliament, that the aforesaid statute and Act of Parliament, in all the articles and clauses in the same contained, from thenceforth for ever should stand and continue in full strength, force, and effect, any statute, law, custom, or any thing made, had, or used to the contrary, in any thing notwithstanding: and for the better reformation of divers enormities happening to the commonwealth, by the evil usage and undue administration of physick, and for the amplifying and enlarging of the last articles, for the better execution of the things in the aforesaid grant contained, it was further enacted, that whensoever the president of the college, or commonalty of the faculty of physick in London, for the time being, or such as the aforesaid president and college, yearly, according to the tenor and meaning of the same Act, should authorise to search, examine, correct, and punish all offenders and transgressors in the aforesaid faculty, within the same city and precinct in the aforesaid Act expressed, should send, or commit such offender or offenders, for his or their offences or disobedience, contrary to any article or clause contained in the aforesaid grant, or act, to any ward, gaol, or prison, within the aforesaid city and precinct aforesaid (the Tower of London excepted) that then, and from time to time, the warders, gaolers, and keepers of the wards, gaols, and prisons within the city or precinct aforesaid (the Tower of London excepted) should receive into his or their prisons all and every such person or persons so offending, which should be sent, or committed to him, or them, as aforesaid, and there safely should keep the person or persons so committed into any of their prisons, at the proper costs and charges of the person or persons so committed, without bail or mainprize, until such offender and offenders, by disobedience, be discharged of the aforesaid imprisonment, by the aforesaid president; and such persons as by the aforesaid college should be authorised, upon pain, that every such warder, gaoler, or keeper, doing [110 a] the contrary, should lose and forfeit double of such fine and amercement as such offender or offenders, or disobedients, should be assessed to pay, by such as by the said president and college, as should be authorised, as before is said, so as the said fine and amercement should not be at any time above the sum of 20l., the moiety whereof to be employed to the use of the said late Queen, her heirs and successors, and the other moiety to the aforesaid president and college, all which forfeitures should be recovered by action of debt, bill, plaint, or information, in any the said late Queens, her heirs or successors, Courts of Record, against any such warden, gaoler, or keeper, so offending, in which no essoign, wager of law, nor protection, should be allowed, nor be admitted for the defendant: and further it was enacted, by the authority of the said Parliament, that all justices, mayors, sheriffs, bailiffs, constables, and other ministers and officers